

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF _____

_____ JUDICIAL CIRCUIT

Plaintiff v. Defendant	FILE NO.: _____ PETITION FOR ORDER TO SHOW CAUSE
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COMES NOW, _____, and petitions this Court for an order requiring _____, (person receiving Petition), to show cause why I should not be allowed visitation as previously ordered by the Court with my minor child(ren); *(list all involved minor children)*

CHILDS NAME	CHILD'S DATE OF BIRTH

and why they should not be held in contempt of Court for refusing to give me the visitation previously granted by the Court.

In support of my request, I state as follows:

1. That I am the ☐ Plaintiff/ ☐ Defendant (check one) in the above-entitled action which is an action for visitation.
2. That on the ____ day of _____, 20____, the Court ordered that I could have visitation.
3. I have attached the prior visitation Court Order to this Petition.

4. The ☐ Plaintiff/ ☐ Defendant (check one) denied me visitation with our child(ren) in what appears to be a violation of the prior Court Order. What happened was:

[illegible]

5. Current address of minor child(ren): _____

City: _____ State: _____ Zip: _____

6. The addresses of minor child(ren) for the past five years: (Please attach additional pages if necessary): _____

7. Names and addresses of all persons with whom the child(ren) has lived during the past five years: _____

8. I ☐ have / ☐ have not (check one) participated in any capacity in any other legal proceeding that concerns the custody or visitation with the child(ren)?

If so, please explain: _____

9. I ☐ know/ ☐ do not know (check one) of any proceeding (Protection Order, adoption, termination of parental rights, etc.) which could affect this proceeding?

If so, please explain: _____

10. Names and addresses of any person not a party to this proceeding who has the physical custody of the child or claims rights to the legal and/or physical custody of or visitation with the child(ren). _____

11. I have filed, or I will be filing within sixty days of serving this Petition, an Affidavit on Court-Approved Parenting Course to comply with the parenting course requirement in SDCL 25-4A-32, in order to enforce my visitation rights.

THEREFORE, I ask that the Court enter an Order to set a date for a Hearing to enforce my visitation rights and hold _____ (person receiving Petition) in contempt for violating my visitation rights. I further request whatever other relief the Court believes justified.

My current address is: _____

State _____ Zip Code _____

The opposing party's address current address is _____

State _____ Zip Code _____

I declare under penalty of perjury under the law of South Dakota that the foregoing is true and correct.

Signed on the _____ day of _____, _____ at _____
(Date) (Month) (Year) (City or other location, and State)

By: ☐ Plaintiff ☐ Defendant

Signature

Printed Name

Address

City, State, Zip

Phone Number